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1. THE NATURE, SCOPE AND SOURCES OF ADMINISTRATIVE LAW

NATURE OF ADMINISTRATIVE LAW

There is a great divergence of opinion regarding the definition of the concept of administrative law. This is because society has become complex and its governance and administration involves a lot of issues that affect the rights, privileges and obligations of citizens within the context of the larger society. Meanwhile, administrative law changes according to the social, economic and political changes.

Administrative law is the law that creates the foundation for public administration, ensures that decisions or action and institutions of government are in accordance with the law and that when they are not, remedies are provided to redress grievance. It can simply put to be law of public administration. It equally provides remedies against unlawful administrative acts.

Peter Cane in his book, Administrative law, defined administrative law as **part of the legal framework for public administration**. And that public administration is the day-to-day implementation of public policy and public programs in diverse areas.

A.W Bradley and K. D Ewing in their book, Constitutional and Administrative Law posit that:

a formal definition of administrative law is that it is a branch of public law concerned with the composition, procedures, powers, duties, rights and liabilities of the various organs of government that are engaged in administering public policies.

Public law is that aspect of the law that deals with public institutions and their duties to the citizens and other bodies in a legal system. The policies are either laid down by the Legislators in a legislation or developed by the government and other authorities in the exercise of their executive powers. It has become important to control the administration in order to ensure that the governmental functions are exercise according to law and protection is provided to the individual against abuse of power. This at large reduces areas of conflict between administrative agencies of the state and the individual.

Dr. Theodore Okonkwo defined administrative law as: **“that arm of the law applied by government agencies and departments following administrative process, rules, procedures and principles which must be in conformity with the provisions of the Constitution and extant laws made by the Federal or State legislatures. It includes the powers of administrative agencies and judicial review of administrative actions based on the principles of administrative legality and the attendant judicial remedies”.**

SCOPE OF ADMINISTRATIVE LAW

Administrative law unlike constitutional law which stems from the Constitution is an open-ended field of legal thought. Administrative law applies to all government actions and actions taken by public entities (administrative agencies).

Administrative law issues arise at all level of government and covers such subjects such as delegation of powers, administrative rule making, and control of the exercise of power of the administration by the three arms of government. It also extends to administrative adjudication, litigation against government and its functionaries, including the right to bring such actions and remedies for legal injuries arising from an administrative conduct. It extends to the activities of regulatory agencies and to private bodies vested with the authority to exercise public power.

Administrative law governs the relations between public agencies and between public agencies and those individuals or private bodies over whose affairs the agency is entrusted with power. By providing an agency or other body with legal powers to perform its task, the legislators thereby imposes a measure of control since an agency is not authorized to go outside its powers. The granting of powers may be subject both to express conditions or limitations and also to implied requirements, such as the duty to exercise powers in good faith and not corruptly. For instance, Police has among other powers, power to arrest by virtue of Criminal Procedure Act (CPA), Criminal Procedure Code (CPC), the Administration of Criminal Justice Act (ACJA) and the Administration of Criminal Justice Law (ACJL) of various States. But these powers are not absolute. In particular, a police officer can be sued for wrongful arrest and false imprisonment if he/she arrests a person without a justification recognized by law or in accordance with the provisions of law

Individuals are affected by administrative powers in many ways, sometimes to their benefit and sometimes to their detriment. An individual rights are seldom absolute. For instance, a land owner whose land is required for an overriding public interest does not have the right to prevent such government acquisition. He can only challenge the acquisition procedure.

In **Oni v. Administrative Proceedings Committee of SEC & Anor (2013) LPELR-20795(CA)** where the issue arises on: Whether an administrative body has the jurisdiction to try an allegation of crime against a person, the court of appeal relying on **Baba v. N.C.A.T.C (1991) 5 NWLR (pt. 192) 388** held that: "only a Court vested with criminal jurisdiction is competent to determine the allegation of fraud". In **Baba v N.C.A.T.C**, Nnaemeka-Agu, JSC, observed as follows: "When a person is accused of a crime, once the hearing body is anything less than a jurisdiction body vested with criminal jurisdiction, an administrative body lacks the jurisdiction and competence to try the issue, For such a body is not a Court, much less a criminal Court. Only a Court vested with criminal jurisdiction is competent to hear and determine such an issue."

SOURCES OF ADMINISTRATIVE LAW

There are so many sources where administrative law principles and rules can be found. However, the following can be listed as sources of administrative law in Nigeria:

- i. **Constitution:** This is the most important source of administrative law in Nigeria. For instance, by virtue of section 5 (1) of the 1999 Constitution of the Federal Republic of Nigeria, the executive powers of the federation shall be exercised by the president himself or through the Vice president, Ministers of the Federation or any other public officer of the federation. This is thus, an institutionalized delegation of powers or authority’
- ii. **Legislation which comprises of Acts, Laws, Statute and Bye Laws:** they create administrative agencies and specify their functions and how to carry out the assigned duties as contained in the legal instruments that establishes them.
- iii. **Delegated Legislations:** These are subsidiary/secondary legislations made for or by administrative agencies. They include rules, regulations, orders, statutory instruments etc. Parliament do not make subsidiary legislation; instead, they delegate the power to another person to do so. In delegating the power to make subsidiary legislation, parliament impose precise restrictions on the exercise of this power.

Subsidiary legislation must exist in relation to an enabling Act. The enabling Act is often called the principal Act. It provides for subsidiary legislation to be made and will specify who has been delegated the power to do so under the Act.
- iv. **Judicial decisions:** Administrative law provides for remedies to an individual who is wronged by some administrative actions. Thus, disputes arising from administrative actions regularly end up in court. Decisions taken by court constitutes judicial precedent in respect of that administrative issue.
- v. **Soft laws made by public administrative agencies;** regardless of whether they have been authorized by National Assembly to legislate on matters dealt with by the soft law. These include ministerial Orders and Regulations. They are special subsidiary legislation made by officials of the executive
- vi. **Customary law:** the courts in Nigeria are enjoined and authorized to rely upon any custom in a proceeding before them and enforce it if it is not contrary to public policy and is not inconsistent with natural justice, equity and good conscience. See **section 18, High Court Law of Rivers State, Cap. 62, Laws of Rivers State, 1999 and section 18(3) of Evidence Act, 2011.** According to Evidence Act, a custom may be adopted as part of law governing a particular set of circumstance if it can be judicially noticed or can be proved to exist by evidence. **See section 16 of Evidence Act, 2011.**
- vii. **Receive English law:** Following the colonization of Nigeria by the British between 1861 and 1914, English law was introduced in Nigeria. Received English law is a source of administrative law in Nigeria. This comprises; Common law, doctrines of equity and Statute of General Application that were in force on 1st January 1900. **See section 32 of the Interpretation Act and the Supreme Court Ordinance of 1914.**
- viii. **The opinions of Learned Writers:** The opinions of learned writers on the rules and principles of administrative may be of persuasive authority, especially on issues that do not have legislative provisions and on which the courts have not had the opportunity to pronounce upon.

All subordinate legislation must be consistent not only with 'constitutional' norms but also with primary legislation; and soft law must be consistent with secondary legislation as well.

P.S.: This lecture note was prepared by **Dr. I. L. Agbo (Mrs.)**, while **Adv. Chimdike** and **Faithful** only highlighted certain parts to enhance clarity and ease of understanding.